

2015 WL 6618622 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Keith J. WARREN, Plaintiff,

v.

THE CITY OF NEW YORK, Detective Yuan Newton (Tax
948105) and Police **Officers** John Doe 1-2, Defendants.

No. 0513017-2015.
October 26, 2015.

Plaintiff designates Kings County as the place of trial

The basis of the venue is:

Place where the cause of
action arose

The Plaintiff resides at:

Kings County, New York

Summons

Walemosaku, Law Offices of Wale Mosaku, P.C., The City of New York, C/O New York City Corporation Counsel, 100 Church Street, New York, N.Y. 10007, 25 Bond Street, 3rd Floor, Brooklyn, New York 11201, (718) 243-0994, Detective Yuan Newton (Tax # 948105), 75th Police Precinct Detective Squad, 1000 Sutter Avenue, Brooklyn, New York 11207, for the plaintiff.

To the above named defendant(s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York

October 26, 2015

KEITH J. WARREN (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK, DETECTIVE YUAN NEWTON (Tax # 948105) and POLICE **OFFICERS** JOHN DOE 1-2 (collectively referred to as "the defendants"), upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by [Title 42 U.S.C. § § 1982, 1983 and 1985](#); and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff is an African American male of full age.
3. At all relevant times, defendants DETECTIVE YUAN NEWTON (Tax # 948105) and POLICE **OFFICERS** JOHN DOE 1-2 of the New York City Police Department (hereinafter “defendant **officers**”), upon information and belief, were and still are law enforcement **officers** in the employ of the police department of the City of New York (hereinafter “NYPD”).
4. At all times herein, the defendant **officers** were employed as law enforcement **officers** of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant **officers** were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant **officer**, through its Police Department, namely NYPD, and the actions of the defendant **officer** complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on April 15, 2015, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiffs claim was assigned Claim No. 2015PI010854.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused. This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

FACTUAL ALLEGATIONS

9. On or about April 1, 2015, at approximately 07:30 a.m., the plaintiff was unlawfully arrested in his residence, specifically 428 Sheffield Avenue, #4L, Brooklyn, N.Y. 11207 (“subject premises”), by the defendant Police **Officers** John Doe 1-2, who upon information and well-founded belief, were acting pursuant to an Information Card (“1-card”) that had been issued by defendant Detective Yuan Newton.
10. Immediately prior to his arrest, the plaintiff was in a bedroom in the subject premises, when he was called to the front door of the subject premises by his mother.
11. Upon arrival at the front door of the subject premises, the plaintiff observed defendant **officers** John Doe 1-2 by the front door, wearing plain clothes, with jackets upon which were inscribed the words “warrant squad”.
12. The defendant **officers** John Doe 1-2 informed the plaintiff that he had to go with them to the precinct, claiming that someone had filed a complaint against him.

13. When the plaintiff inquired as to the identity of the person who had filed the complaint and the nature of the complaint, defendant **officers** John Doe 1-2 informed the plaintiff that they could not give him any details of the substance of the purported complaint.

14. When the plaintiff stepped into the hallway, he was placed in handcuffs by defendant **officers** John Doe 1-2. The plaintiff was subsequently driven to the 75th precinct and placed in a holding cell by defendant **officers** John Doe 1-2.

15. At approximately 10:30 a.m., the plaintiff was interviewed by defendant Detective Newton, who informed the plaintiff that he had video evidence that the plaintiff and a group of young people had engaged in the robbery of a person on a certain day.

16. The plaintiff informed Detective Newton that he had never robbed anyone in his life, and denied participating in a robbery.

17. Detective Newton did not show the plaintiff the tape he had purportedly viewed. However, Detective Newton showed the plaintiff two photographs of different black males, and asked the plaintiff if he could identify said males.

18. The plaintiff, who had never seen those black males before, informed Detective Newton that he did not know those black males.

19. At that juncture, Detective Newton took a photograph of the plaintiff with his cellular phone, and concluded the interview of the plaintiff.

20. The plaintiff was then “processed” at the precinct by having his photograph and fingerprints taken.

21. Subsequently, the plaintiff was taken to Central Booking at approximately 07:00 p.m., where he was processed again.

22. Subsequently, at approximately 08:30 p.m., without being arraigned in front of a judge, he was approached by a Corrections **Officer**, who informed him that he was being released from custody.

23. Upon information and well-founded belief, the Kings County District Attorney's office declined to prosecute the plaintiff. The plaintiff's arrest number was “K15623343”.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

24. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 23 of this complaint as though fully set forth herein.

25. Following the plaintiff's arrest, the defendant **officers** searched/strip searched and/or caused the plaintiff and/or his property to be searched/strip searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.

26. As a result of the foregoing, the plaintiff and/or his property was/were subjected to illegal and improper search(es)/strip search(es).

27. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

28. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant **officers**, individually and severally.

**CAUSE(S) OF ACTION: FALSE ARREST AND FALSE
IMPRISONMENT UNDER 42 U.S.C § 1983 and NEW YORK STATE LAW**

29. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.

30. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiffs arrest or subsequent detention.

31. As a result of plaintiffs above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

32. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant **officers**, individually and severally.

**CAUSE OF ACTION AGAINST THE DEFENDANT CITY OF
NEW YORK: MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983**

33. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.

34. The acts complained of were carried out by the individual defendant **officers** in their capacities as police **officers** and officials, with all the actual and/or apparent authority attendant thereto.

35. The defendant **officers** acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.

36. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practice(s): wrongfully arresting and/or detaining innocent members of the public pursuant to the unlawful issuance of "I-Card(s)".

37. That an I-card was and is an illegal and unconstitutional departmental tool utilized by the NYPD, wherein an investigating detective, such as defendant Detective Yuan Newton, who desired (or desires) to question a member of the public, rather than follow due process and seek an arrest warrant from a court of competent jurisdiction, prepared (or prepares) said I-card, and thereafter caused (or causes) same to be dispersed and disseminated within the NYPD computer system.

38. That the intent and practical effect of said I-card was and is to serve as a court issued arrest warrant.

39. That any member of the NYPD who became (or becomes) aware of said I-card, such as the Police **Officers** John Doe 1-2, was and is trained to seek and/or arrest and/or detain the subject of the I-card, and thereafter present the subject of the I-card to the detective who issued the I-card.

40. That sworn testimony offered by NYPD **officers** confirms the existence of the NYPD policy and practice of arresting and/or detaining innocent members of the public pursuant to the unlawful issuance of "I-card(s)", as follows:

a. In a case captioned *Jeff Beausejour v. The City of New York*, et al - Eastern District of New York - 11 Civ. 625 (PKC)(LB), in which the plaintiff alleged, *inter alia*, that he had been wrongfully arrested and detained by NYPD **officers** on January 5, 2010, a defendant **officer**, namely Detective Joseph Solomon (Shield # 4647), had testified (on July 11, 2013), *inter alia*, that

he had prepared an I-card prior to the arrest of Mr. Beausejour; that he had prepared said I-card ***“because we were looking for him”***; that ***“an I-card is a tool used by detectives to identify a person that they are looking for in regards to a crime”***; that once he prepared the I-card, he had inputted it into an “ADW” system, which is ***“for persons being sought after by the New York City Police Department. Their name would be on that system”***; that “the entire New York City Police Department” had access to that system”; that if an **officer** comes into contact with a person whose name is indicated in an I-card he prepares, that said **officer** ***“should place that individual under arrest”***¹; even though an I-card ***“is not an arrest warrant, no”***.

b. In a case captioned *Kiama Faltine v. The City of New York*, et al - Eastern District of New York - 12 Civ. 3487(ENV)(SMG), in which the plaintiff alleged, *inter alia*, that he had been wrongfully arrested and detained by NYPD **officers** on March 12, 2012, a defendant **officer**, namely Police **Officer** Miguel Vargas (Shield # 13912). had testified (on February 20, 2013) *inter alia*, that following the arrest of Mr. Faltine, he became aware that there was an “active” I-card that had been issued with respect to Mr. Faltine; that I-cards are issued by the “Detective Bureau”; that ***“an I-card is something saying that someone is wanted for questioning or sought for whatever reason by the police department”***; that an ***“I-card could be just like a warrant. It comes up in the same --It comes up the same as a warrant comes up. There is some sort of investigation involving that person which is why he would be detained, he or she”***; and when asked whether anyone within the NYPD had informed him that an I-card is an arrest warrant or similar to an arrest warrant, responded ***“...it is what we were told, you know, when you run someone, you run their name for a warrant or whatever. When that comes up, that is what we know to do...To detain until we get a hold of whoever issued the I-card, and then be guided by that”***; and that he had been instructed to take such actions during the course of his employment at the NYPD, prior to the arrest of Mr. Faltine.

c. In a case captioned *Michael Johnson, et al v. The City of New York*, et al - New York State Supreme Court, Kings County Index # 3571/2012, a defendant **officer**, namely Police **Officer** David Greico (Shield # 18061) had testified (on May 19, 2015) *inter alia*, that the NYPD's “Warrant Squad” ***“normally go after felony warrants or “I” cards...”***; that an “I” card ***“is similar to a warrant, but not from the DA's office, but from the New York City Police Department. If somebody commits an offense and there is an open report against them, we put an “I” card out showing there is probable cause to arrest them or maybe just a witness to something”***; that I-cards are issued by ***“the Detective Squad in the precinct”***; and when asked what would happen if he comes into contact with somebody that his system informs him has an I-card attached to his name, responded that such a person would be arrested ***“as long as it is a probable cause to arrest. Sometimes if you are just a witness for a homicide, we do not arrest that person”***.

41. Additionally, in an action captioned *Stephen Walker v. The City of New York*, et al - Eastern District of New York - 14 Civ. 6413 (JG)(JO), in which the plaintiff alleged, *inter alia*, that he had been wrongfully arrested on October 30, 2013 within his residence, pursuant to the issuance/activation of I-card, by NYPD **officers** who did not have an arrest warrant, the defendant City's counsel had informed the plaintiffs counsel, via email, that she ***“just spoke with Defective Winters who informed me that the warrants squad picked up your client from his home... He indicated that he was the one who issued the I card after conducting a photo array with the complaining victim”***.

42. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all members of the public, including but not limited to the plaintiff; deprived the plaintiff of due process, were the proximate cause of, and moving force behind the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

(a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

43. The defendants Detective Yuan Newton and Police **Officers** John Doe 1-2 were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered.

44. The actual principal/agent relationship between defendant City and the defendant **officers** was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiffs reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York

October 26, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku

Attorney for the Plaintiff

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Footnotes

¹ Mr. Beausejour was arrested by other defendant **officers** pursuant to the I-card that Detective Solomon prepared.